

24SMCV01356 24SMCV01356

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-04

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Case Number: 24SMCV01356 Hearing Date: August 4, 2026 Dept: M

CASE NAME: Cognein v.

Lieb, et al.

CASE NO.: 24SMCV01356

HEARING DATE: 8/4/2026

MOTION: Motion to Dismiss

Legal

Standard

Code of Civil Procedure ("CCP")

section 581(f)(2) states that the court may dismiss a complaint as to a defendant "after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal."

The Court has discretion to accept

untimely amendment without prior noticed motion for leave. (Harlan v. Department of Transp. (2005) 132 Cal.App.4th 868, 874; see Leader v. Health Indus. of America, Inc. (2001) 89 Cal.App.4th 603, 611 [court properly utilized its discretion to deny leave to amend where plaintiffs did not file a noticed motion for leave].)

ANALYSIS

Defendant Matthew Lieb moves to

dismiss Plaintiff Perside N. Cognein's complaint against him for failure to amend. Defendant demonstrates grounds for discretionary dismissal under section 581(f)(2). On February 4, 2026, the Court sustained Defendant's demurrer as to each cause of action alleged against him, and granted 30 days' leave to amend the causes of action for fraud, conspiracy, property theft, wrongful foreclosure, unpaid rent, and legal eviction. Plaintiff did not, and has not, filed an amended complaint as ordered. Plaintiff also does not oppose the instant motion. Thus, the Court has discretion to dismiss the action as to Lieb.

The Court will permit Plaintiff a final opportunity to file an amended complaint. The Court will accept an amended complaint until the hearing on this motion to dismiss. If Plaintiff does not proffer an amended complaint before or at the hearing, the Court will dismiss the action as to Lieb with prejudice.

Accordingly, the motion is GRANTED.